

“evidence suggests that the dangerous condition was present for a sufficient amount of time.” (*Id.*)

2.

CASE #	CASE NAME	HEARING NAME
CVSW2400784	DUANE KARTCHNER AND DONNA KILPATRICK VS JOHNSON	MOTION TO BE RELIEVED AS COUNSEL FOR AARON JOHNSON

Tentative Ruling: Hearing Required.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2400784	DUANE KARTCHNER AND DONNA KILPATRICK VS JOHNSON	MOTION TO BE RELIEVED AS COUNSEL FOR ARIANNA JOHNSON

Tentative Ruling: Hearing Required.

4.

CASE #	CASE NAME	HEARING NAME
CVME2502324	OROSCO VS STATER BROS MARKET	DEMURRER

Tentative Ruling: Special Demurrer for Uncertainty Sustained with 20 days leave to amend.

On March 25, 2023, Plaintiff Stephanie Orosco (“Plaintiff”) was a patron at Defendant Stater Bros. Market (“Stater Bros.”) in Lake Elsinore. As Plaintiff was walking towards the exit, she was followed and questioned by Defendant John Doe (“Doe”), a security guard for the subject premises. Plaintiff alleges Doe physically attacked and assaulted her with such force that she suffered injuries and damages. On February 28, 2025, Plaintiff filed her complaint alleging five causes of action: 1) assault (against Doe only); 2) battery (against Doe only); 3) intentional infliction of emotional distress (against Doe only); 4) negligence (against all Defendants); and 5) negligent hiring, supervision and retention (against Stater Bros. and Does 1-50).

On May 12, 2026, Plaintiff filed an Amendment to the Complaint naming Andrew Montano as Doe 2 (“Montano”).

Montano now demurs to the 4th and 5th causes of action on the ground each fails to state facts sufficient to constitute a claim against him. (C.C.P., § 430.10(e).) He also argues the entirety of the complaint is vague, uncertain, and unintelligible as to the things alleged and the theories of liability that Montano is being called upon to account for. (C.C.P. § 430.10(f).) Montano states he has been named in place of Doe 2, but the complaint attributes all alleged misconduct to a separate individual identified as “John Doe, a security guard.” It contains no factual allegations regarding Montano’s alleged personal liability whatsoever.

Plaintiff opposes and argues she has adequately alleged each of the fictitiously named Defendants is responsible in some manner for the occurrences herein alleged, and that